



SPONSOR: Sen. Huxtable & Rep. Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 121

AN ACT TO AMEND THE CHARTER OF THE TOWN OF DEWEY BEACH.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

1 Section 1. Amend Section 8 of the Charter of the Town of Dewey Beach by making deletions as shown by strike
2 through and insertions as shown by underline as follows:

3 Section 8(c) – Organization, of the Town Charter, is hereby amended by striking duplicate language
4 regarding budget requirements and process in favor of language currently provided in Section 22 – Town Budget
5 as depicted by highlighted insertions, strikeouts, and substitutions below:

6 (c) ~~The Town Council shall, by ordinance, fix the total amounts of the salaries or compensation paid to~~
7 ~~employees and officers on a department by department basis as part of the annual budget approval process. The~~
8 ~~salaries or compensation of individual employees or officers must be consistent with the staffing plan approved as~~
9 ~~part of the annual budget process and are set by the appropriate department head, with the approval of the Town~~
10 ~~Manager.~~ An employee or officer of the Town must not have, take, or receive from the Town or otherwise, any
11 compensation, in any form, in addition to the salary or compensation fixed by the Town Council under this
12 subsection.

13 Section 2. Amend Section 16 of the Charter of the Town of Dewey Beach, by making deletions as shown by strike
14 through and insertions as shown by underline as follows:

15 Section 16(f) – Responsibilities of the Town Manager, is hereby amended to add parking administration
16 to the list of responsibilities of the town manager as depicted by highlighted insertions, strikeouts, and
17 substitutions below:

18 (f) The Town Manager shall have charge and supervision of the sewer system, water system, street
19 lighting, streets, gutters, curbs, sidewalks, boardwalks, jetties, piers, parks, parking administration, and other
20 administrative affairs of the Town and all work relating thereto. The Town Manager shall have charge of and shall
21 collect all taxes, assessments, rentals, franchise fees, license fees, or other charges due the Town. The Town
22 Manager shall have charge of the administration of all provisions of this Charter and ordinances and resolutions of

the Town Council relating to the affairs of the Town when not otherwise provided for by this Charter or by any ordinance or resolution of the Town Council.

Section 3. Amend Section 17 of the Charter of the Town of Dewey Beach, by making deletions as shown by strike through and insertions as shown by underline as follows:

Section 17(a) – Audit Committee; Auditors, is hereby amended to provide authority to the Town Manager to terminate the contract with the auditor with concurrence of the Audit Committee, as depicted by highlighted insertions, strikeouts, and substitutions below:

(a) The Audit Committee (Committee) shall be composed of not less than 3 individuals who are qualified under Section 10(b) of this Charter to vote in the Town of Dewey Beach and who have no relationship to the Town that may interfere with the exercise of their independence from the Town's management and the Town. The Chairperson and members of the Committee shall be appointed by the Town Council to serve for a term of 1 year. Each member of the Committee must be financially competent and at least 1 member must have accounting or related financial management experience. The principal purpose of the Committee is to provide oversight of the annual audit of the Town financial statements, to recommend the hiring of an independent financial audit firm, to assess the qualifications and independence of the firm and to negotiate a price for the audit, to review the performance of the independent audit firm, to review the firm's audit report and assessment of the Town's accounting and reporting practices and internal control systems, and to recommend acceptance or rejection by the Town Council of the audit report. The independent audit firm's contract to perform audit services may be terminated by the Town Manager with concurrence of the Audit Committee.

Section 4. Amend Section 19 of the Charter of the Town of Dewey Beach, by making deletions as shown by strike through and insertions as shown by underline as follows:

Section 19(b) – Police Force; Chief of Police; Beach Patrol, is hereby amended to require that any candidate for Chief of Police without certification by the Delaware Council on Police Training complete necessary training for certification within one year as a condition of employment, as depicted by highlighted insertions, strikeouts, and substitutions below:

(b) The Town Council shall appoint a Chief of Police to head the Police Force. The Town Council shall select the Chief of Police from at least 3 candidates, recommended by the Town Manager, who meet the qualifications established by the Town Manager and approved by the Town Council, ~~and who~~. Candidates must satisfy, or agree to satisfy, the requirements of the Delaware Council on Police Training under Regulation 800 of Title 1 of the Delaware Administrative Code. Any candidate that does not have the required certification will be

53 required to obtain certification, as a condition of employment, within one year of the date of employment. A
54 candidate must receive 3 or more favorable votes from Commissioners on the Town Council to be appointed as the
55 Chief of Police.

56 Section 5. Amend Section 19 of the Charter of the Town of Dewey Beach, by making deletions as shown by strike
57 through and insertions as shown by underline as follows:

58 Section 19(d)(1) – Police Force; Chief of Police; Beach Patrol, is hereby amended to require that the
59 Beach Patrol Captain serve under a contract of no more than 3 years, as depicted by highlighted insertions,
60 strikeouts, and substitutions below:

61 (d)(1) The Captain of the Beach Patrol ~~may~~ must serve under an employment contract, ~~but the term of the~~
62 ~~contract must~~ with a fixed term that does not exceed 3 years. The employment contract must not automatically
63 renew, but subject to the Town Council's approval, the employment contract may be renewed by the Town
64 Manager for an indefinite number of terms. The Beach Patrol Captain must be disciplined or terminated in
65 accordance with the terms of the employment contract, and in the absence of an employment contract, the Beach
66 Patrol Captain is an at-will employee.

67 Section 6. Amend Section 23 of the Charter of the Town of Dewey Beach, by making deletions as shown by strike
68 through and insertions as shown by underline as follows:

69 Section 23(a)(10) – Enumeration of Powers, is hereby amended to strike redundant language regarding
70 the Town's power to borrow money, in favor of language provided in Section 26 – Borrowing Money and Issuing
71 Bonds, as depicted by highlighted insertions, strikeouts, and substitutions below:

72 23(a)(10) To borrow money in the name of the Town for any proper municipal purpose, ~~and in order to~~
73 ~~secure the payment of the same, to issue bonds or other kinds or forms of certificate or certificates of indebtedness,~~
74 ~~pledging the full faith and credit of the Town or other security or securities as the Town Council shall select, for~~
75 ~~the payment of the principal thereof and the interest due thereon, all of which bonds or other kinds or forms of~~
76 ~~certificates of indebtedness issued by the Town shall be exempt from all State, county, or municipal taxes;~~
77 ~~provided, that in no event shall the indebtedness of the Town, for any and all purposes, at any one time exceed in~~
78 ~~the aggregate \$3,000,000.~~

79 Section 7. Amend Section 26 of the Charter of the Town of Dewey Beach, by making deletions as shown by strike
80 through and insertions as shown by underline as follows:

81 Section 26(a) – Borrowing Money and Issuing Bonds, is hereby amended regarding the Town's power to
82 borrow money, as depicted by highlighted insertions, strikeouts, and substitutions below:

83 (a) The Town Council may borrow money, in an aggregate amount that does not exceed \$3,000,000
84 unless approved by a referendum. To secure the payment of money borrowed under this section, the Town Council
85 is authorized and empowered to issue bonds or other kinds or forms of certificate or certificates of indebtedness
86 pledging the full faith and credit of the Town of Dewey Beach, or such other security or securities as the Town
87 Council elects, for the payment of the principal thereof and the interest due thereon. All such bonds or other kinds
88 or forms of certificates of indebtedness issued by the Town shall be exempt from all State, county, or municipal
89 taxes. In no event shall the indebtedness of the Town, for any and all purposes, at any one time exceed in the
90 aggregate \$3,000,000.

SYNOPSIS

This Act makes amendments to the Charter of the Town of Dewey Beach. Section 1 strikes language regarding budget requirements and process in Section 8(c) of the charter in favor of language that is currently included in Section 22 of the charter, concerning the Town Budget.

Section 2 of the Act provides that the Town Manager is responsible for parking administration, in addition to the other enumerated responsibilities of the Town Manager under the current charter.

Section 3 of the Act provides that the Town Manager, with the concurrence of the Audit Committee, may terminate the contract of an independent audit firm's contract to perform audit services for the Town.

Section 4 of the Act provides that any candidate for Chief of Police who is not certified by the Delaware Council on Police Training must complete the necessary training for certification within 1 year of the date of employment, as a condition of employment.

Section 5 of the Act provides that the Beach Patrol Captain is required to serve under a contract of no more than 3 years.

Section 6 of the Act strikes redundant language regarding the town's power to borrow money, in favor of language currently included in Section 26 of the charter, concerning Borrowing Money and Issuing Bonds.

Section 7 of the Act amends Section 26 of the charter to provide that bonds or other forms of certificates of indebtedness issued by the Town are exempt from all state, county, or municipal taxes and that the Town's indebtedness, in the aggregate, may not exceed \$3 million at any one time.

Author: Senator Huxtable